

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, SEPTEMBER 18, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**RIVERA and HERNANDEZ v. LEGANDARY STAFFING, INC., et al.
Case No. cu23-01485**

Motion by Plaintiffs for Preliminary Approval of Class Action/PAGA Settlement

TENTATIVE RULING

Parties and any interested persons are to appear for hearing as scheduled. Absent any objections, the court anticipates granting the preliminary approval motion, and setting a final approval hearing about five months from the date of this hearing. However, the court puts the parties on notice that it is considering at final approval hearing the reduction of attorneys fees claimed to 25% of the gross settlement amount, as well as the proposed service award down to the amount of \$3,000, and also may direct payment of any uncashed settlement checks to either CASA or Legal Services of NorCal in Vallejo, CA. The court would also appreciate an explanation as to what happened to named plaintiff Blanca Rivera, and what the average estimated payout per employee is expected to be with the current proposed deductions.

**BEASLEY v. SELENE FINANCE, L.P., et al.
Case No. cu26-03170**

Demurrer by Defendant SELENE FINANCE LP to Plaintiff's Complaint

TENTATIVE RULING

The demurrer is uncertain as to demurring defendant SELENE FINANCE LP (“SELENE”), as the complaint focuses on the foreclosure of the junior loan lien, not the senior loan for which SELENE was the loan servicer. C.C.P. §430.10(f).

The complaint also fails to state any cause of action against SELENE. C.C.P. §430.10(e).

To defend against a demurrer for failure to state a cause of action, a plaintiff “must show that he pleaded facts sufficient to establish every element of that cause of action.” Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879; see also Ross v. Creel Printing & Publishing Co., Inc. (2002) 100 Cal.App.4th 736, 748 [“If any element of a cause of action is negated, a demurrer to the cause of action is properly sustained”].

None of the four causes of action allege any wrongdoing on the part of SELENE that would support any claim of liability against it.

Even if the court were to consider the opposition papers filed by an attorney who at the time of this filing no longer represented either of the Plaintiffs, the opposition fails to identify how the complaint could be amended to state any viable cause of action against SELENE.

The court therefore sustains the demurrer of SELENE to each and every cause of action, and thus the complaint in its entirety, without leave to amend.

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